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ONE SOURCE TECHNOLOGY, LLC
d/b/a ASURINT

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-CV-00191-DOC-KES

DEFENDANT ONE SOURCE TECHNOLOGY , LLC D/B/A ASURINT'S ANSWER TO PLAINTIFF'S COMPLAINT AND AFFIRMATIVE AND OTHER DEFENSES

Complaint Filed: Jan. 31, 2025
Trial Date: None Set

Defendant, One Source Technology, LLC d/b/a Asurint ("Asurint" or "Defendant"), by and through its attorneys and pursuant to Rules 8 and 12 of the Federal Rules of Civil Procedure, hereby answers Plaintiff Roberto Sandoval Carrillo's Class Action Complaint, and asserts its affirmative and other defenses as follows:

SUMMARY OF ACTION

COMPLAINT ¶1:

Plaintiff, individually and on behalf of all others similarly situated, brings this action for damages and other legal and equitable remedies, based on: (i) Vons' unlawful and unfair conduct in using information disclosed in the California Department of Justice Megan's Law Website ("Megan's Law Website") for employment purposes; (ii) Vons' failure to conduct an individualized assessment of whether Plaintiff's conviction has a direct and adverse relationship with the specific duties of an Vons deli clerk that justified denying him the position; and (iii) Asurint's unlawful and unfair conduct in furnishing consumer background reports to Vons while knowing that Vons unfairly and unlawfully uses information contained in the consumer reports.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint admits only that Plaintiff purports to bring claims for "damages and other legal and equitable remedies" in connection with a consumer report that Asurint prepared regarding Plaintiff at the request of Vons. Asurint states that the referenced report is the best evidence of its contents and denies any allegations in Paragraph 1 of the Complaint that are inconsistent with the referenced report. Asurint further denies that it violated any laws, and denies that Plaintiff or any potential putative class member is entitled to any damages whatsoever. Asurint denies any remaining allegations in Paragraph 1 of the Complaint to the extent they are directed toward Asurint, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶2:

In so doing, Vons has violated the: (i) California Megan's Law, Penal Code § 290.46 ("Megan's Law"); (ii) California Fair Chance Act, Government Code § 12952; and (iii) California Unfair Competition Law ("UCL"), Business and Professions Code § 17200. Asurint has violated: (i) federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681b(b)(2); and (ii) the UCL, Business and Professions Code § 17200.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 2 of the Complaint, and specifically denies that Asurint violated any section of the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.* ("FCRA"), denies that it violated the UCL, Business and Professions Code § 17200, and denies that it violated any other law, and specifically denies that class treatment is appropriate in this action. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons in Paragraph 2 of the Complaint, and denies those allegations on that basis. Asurint denies any remaining allegations in Paragraph 2 of the Complaint.

COMPLAINT ¶3:

With respect to Vons' unlawful and unfair use of information on the Megan's Law Website, pursuant to the applicable statutes, Plaintiff seeks an injunction ordering that, moving forward, Vons cease from using information on the Megan's Law Website for employment purposes. With respect to Vons' failure to conduct an individualized assessment of whether an applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position, Plaintiff seeks an injunction ordering that, moving forward, Vons institute a robust program to provide for the individualized assessment of each prospective employee or employee with a known conviction history. With respect to Asurint's unlawful and unfair conduct in furnishing consumer background reports to Vons while

knowing that Vons unfairly and unlawfully uses information from the Megan's Law Website for employment purposes, Plaintiff seeks an injunction ordering that, moving forward, Asurint cease such conduct.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint admits that Plaintiff purports to seek injunctive relief and damages. Asurint denies that it violated the FCRA, denies that it violated the UCL, denies that it violated any other law, and specifically denies that Plaintiff or any potential putative class member is entitled to any relief whatsoever from Asurint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons in Paragraph 3 of the Complaint, and denies those allegations on that basis. Asurint denies any remaining allegations in Paragraph 3 of the Complaint to the extent they are directed toward Asurint, and specifically denies that class treatment is appropriate in this action.

THE PARTIES

COMPLAINT ¶4:

Plaintiff is an individual consumer residing in the State of California, San Diego County.

ANSWER:

Asurint admits that Plaintiff is a "consumer" as that term is defined by the FCRA. Asurint lacks knowledge or information sufficient to form a belief as to the location of Plaintiff's current residence. Asurint denies any other allegations in Paragraph 4 of the Complaint.

COMPLAINT ¶5:

Defendant Vons is a Michigan corporation with a headquarter in Fullerton, California.

ANSWER:

Paragraph 5 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 5 of the Complaint.

COMPLAINT ¶6:

Defendant One Source Technology, LLC d/b/a Asurint ("Asurint") is a consumer reporting agency that assembles and provides consumer reports to third parties for employment purposes and facilitates third party background checks by issuing pre-adverse action notices and adverse action notices. Asurint is licensed in Delaware and based in Cleveland, Ohio.

ANSWER:

Asurint admits that it provides certain services as a "consumer reporting agency," as that phrase is defined by the FCRA, and as to those services only, and that those reports may be used in connection with employment decisions. Asurint further admits that it is based in Cleveland, Ohio. Asurint denies the remaining allegations in Paragraph 6 of the Complaint, and specifically denies that it "issues" pre-adverse action or adverse action notices on individuals on whom it may prepare consumer reports.

COMPLAINT ¶7:

Doe Defendants 1-5 are the background check companies and individuals who provided background information about Plaintiff, obtained a background report on Plaintiff, and/or used information on the Megan's Law Website for employment purposes.

ANSWER:

Paragraph 7 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint denies the allegations in Paragraph 7 of the Complaint.

JURISDICTION AND VENUE

COMPLAINT ¶8:

This is an action brought under 15 U.S.C. § 1681b, 1681n and § 16810 of the FCRA. The Court has jurisdiction over this action pursuant to 28 U.S.C. § 1331 because it arises under the laws of the United States. This Court also has jurisdiction over this action pursuant to the Class Action Fairness Act, 28 U.S.C. § 1332(d)(1). Plaintiff brings a class action under Federal Rule of Civil Procedure 23. Plaintiff and Asurint are citizens of different states, and on information and belief, the amount in controversy exceeds the sum of $5,000,000.00.

ANSWER:

Paragraph 8 of the Complaint consists entirely of legal conclusions to which no response is required. To the extent a response is required, Asurint admits only that Plaintiff purports to bring this action under the identified statutes and purports to assert that jurisdiction is proper based on the cited authorities. Asurint lacks knowledge or information regarding Plaintiff's current residence, and on that basis denies those allegations. Asurint denies all remaining allegations, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶9:

Venue in this district is proper under 28 U.S.C. § 1391(b)(2) because Vons is headquartered in Orange County and a substantial part of the events or omissions giving rise to the claim occurred in this District.

ANSWER:

Paragraph 9 of the Complaint consists entirely of legal conclusions to which no response is required. To the extent a response is required, Asurint denies the allegations in Paragraph 9 of the Complaint.

STATEMENT OF FACTS

COMPLAINT ¶10:

In 1998, Plaintiff obtained his Bachelor of Arts in History from San Francisco State University. After obtaining his degree, Plaintiff moved to Southern California and obtained his teaching credential in 2000 and was student teaching for middle school and high school classes during that time.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 10 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶11:

For many years until December 2015, Plaintiff worked as an educator in the Sweetwater Union High School District. Plaintiff is also a musician, and during that time he also pursued a music career, obtained a certificate from the Berkeley College of Music, and added music as a subject to his teaching credential as a supplemental subject.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 11 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶12:

In 2016, Plaintiff was charged for possessing explicit material of a minor and was convicted in 2017. As a result, Plaintiff appears as a registered sex offender on the Megan's Law Website, along with information about the basis for his convictions.

ANSWER:

Asurint admits that Plaintiff appears as a registered sex offender on the Megan's Law Website. Asurint lacks knowledge or information sufficient to form a belief as to

the truth of the remaining allegations in Paragraph 12 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶13:

Plaintiff spent five years in prison, and in October 2022 Plaintiff was released.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 13 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶14:

Plaintiff deeply regrets his actions and believes that he is completely rehabilitated. Plaintiff has made every effort to rebuild and redefine himself by working diligently to become a productive member of his community.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 14 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶15:

Since the charge, Plaintiff has obtained a paralegal certificate from University of San Diego and has been taking courses through San Diego Community College District in paralegal classes and labor studies. Plaintiff has also sought to find employment and make a living, but employers like Vons have hindered his efforts.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first sentence of Paragraph 15 of the Complaint. Asurint denies the remaining allegations in Paragraph 15 of the Complaint.

COMPLAINT ¶16:

In January 2023 Plaintiff applied for a deli clerk position with Vons, a grocery store chain owned by Albertson's Companies, Inc. Vons gave Plaintiff a conditional offer of employment, and he began work in early January 2023.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 16 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶17:

As a deli clerk Plaintiff stood behind the deli counter taking food orders, measuring, cooking, and serving food, cleaning the deli area, and generally offering great customer service. Plaintiff really enjoyed the job and his colleagues.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 17 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶18:

On January 24, Asurint sent Plaintiff an email stating:

Dear Roberto,

The purpose of this letter is to notify you that Asurint, a consumer reporting agency, is reporting criminal or other public record information that may be adverse about you to:

Vons - San Diego #2784 (Southern Cal)
515 W Washington ST c/o Albertsons San Diego, CA 92103
(855) 275-7185

The above listed employer/agency has certified that it is using such public record information to determine your eligibility for employment, promotion, reassignment, and/or retention or volunteer placement.

ANSWER:

Asurint admits that, on January 24, 2023, Plaintiff was notified that Asurint was reporting public record information about him to Vons. Asurint states that the referenced correspondence is the best evidence of its contents and denies any allegations in Paragraph 18 of the Complaint that are inconsistent with the referenced correspondence. Asurint denies all remaining allegations in Paragraph 18 of the Complaint.

COMPLAINT ¶19:

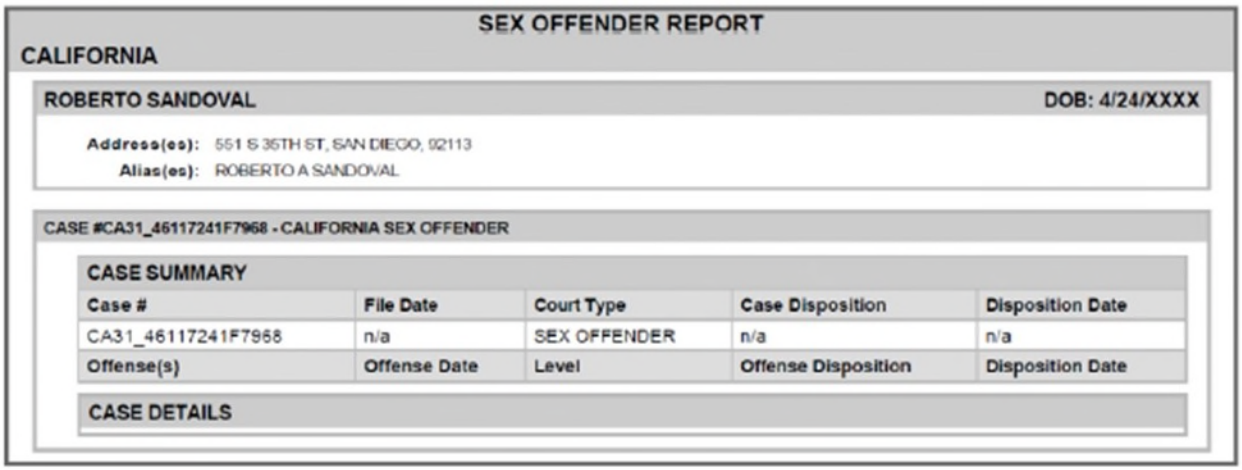
On or about February 28, Asurint completed its investigation and prepared a written background report on Plaintiff. On its website, Asurint touts that its "powerful, customizable technology backed by subject matter expertise and personalized assistance" includes conducting criminal background checks, including its "Sex Offender Registry" search. *See Asurint*, "Why Asurint" (available at https://asurint.com/why-asurint) (last visited on April 10, 2024), "Criminal Background Searches," (available at https://asurint.com/Asurint/media/Asurint/PDFs/Asurint-Solution-Guide.pdf) (last visited on April 10, 2024).

ANSWER:

Asurint admits that, on February 28, 2023, at the request of Vons, it completed a consumer report regarding Plaintiff. Asurint states that the referenced report and Asurint's website are the best evidence of their contents and denies any allegations in Paragraph 19 of the Complaint that are inconsistent with the language or contents of Asurint's website or the referenced report. Asurint denies all remaining allegations in Paragraph 19 of the Complaint.

COMPLAINT ¶20:

The background report on includes conviction information from the Megan's Law website.



SEX OFFENDER REPORT

CALIFORNIA

ROBERTO SANDOVAL DOB: 4/24/XXXX

Address(es): 551 S 35TH ST, SAN DIEGO, 92113
Alias(es): ROBERTO A SANDOVAL

CASE #CA31_46117241F7968 - CALIFORNIA SEX OFFENDER

CASE SUMMARY

Case #	File Date	Court Type	Case Disposition	Disposition Date
CA31_46117241F7968	n/a	SEX OFFENDER	n/a	n/a
Offense(s)	Offense Date	Level	Offense Disposition	Disposition Date

CASE DETAILS

ANSWER:

Asurint admits that it prepared a consumer report regarding Plaintiff at the request of Vons. Asurint states that the referenced report is the best evidence of its contents and denies any allegations in Paragraph 20 of the Complaint that are inconsistent with the referenced report. Asurint denies any remaining allegations in Paragraph 20 of the Complaint.

COMPLAINT ¶21:

On February 28, Asurint, as an agent and at the direction of Vons, emailed Plaintiff a pre-adverse action notice. Among other things, it stated that it was notifying Plaintiff "because an adverse employment decision (e.g. the withdrawal of a conditional offer of employment, transfer or promotion) [that] may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process," and:

> **We have identified the following convictions on your report to be job-related:**
>
> Sex Offender

(emphasis in original).

ANSWER:

Asurint states that the referenced communication is the best evidence of its contents and denies any allegations in Paragraph 21 of the Complaint that are inconsistent with the referenced communication. Asurint denies all remaining allegations in Paragraph 21 of the Complaint.

COMPLAINT ¶22:

On March 6, following back and forth communications with Asurint, Plaintiff emailed Vons and Asurint providing mitigating evidence and evidence of rehabilitation, including letters from former colleagues and a former therapist attesting to his character and fitness.

ANSWER:

Asurint states that the referenced communication is the best evidence of its contents and denied any allegations in Paragraph 22 of the Complaint that are inconsistent with the referenced communication. Asurint denies all remaining allegations in Paragraph 22 of the Complaint.

COMPLAINT ¶23:

Later that same day Asurint responded, stating "The Asurint Compliance Department is in receipt of your request to add a statement and documentation to your rep ort. We have updated your report to include your statement and have notified your prospective employer that the updated report is available for review."

ANSWER:

Asurint states that the referenced communication is the best evidence of its contents and denies any allegations in Paragraph 23 of the Complaint that are inconsistent with the contents of the referenced communication. Asurint denies all remaining allegations in Paragraph 23 of the Complaint.

COMPLAINT ¶24:

The very next day on March 7, Asurint, as an agent and at the direction of Vons, emailed Plaintiff a post-adverse action notice, terminating Plaintiff s employment, stating:

> Dear Applicant,
>
> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was influenced in whole or in part by a pre-employment screening report prepared by Asurint....
>
> We have identified the following convictions on your report to be job-related:
>
> Sex Offender

ANSWER:

Asurint states that the referenced communication is the best evidence of its contents and denies any allegations in Paragraph 24 of the Complaint that are inconsistent with the contents of the referenced communication. Asurint denies all remaining allegations in Paragraph 24 of the Complaint.

COMPLAINT ¶25:

On information and belief, at no time did Vons conduct an individualized assessment of whether Plaintiff's conviction history has a direct and adverse relationship with the specific duties of a Vons deli clerk. Vons did not even consider the fact that Plaintiff had been successfully working at Vons as a deli clerk for two months and had been excelling in his position, so much so that the general manager, Laura, told him he could use her as a reference for future employment, and his direct supervisor, Holly, also told Plaintiff to get assistance from the union and use her as a reference.

ANSWER:

Paragraph 25 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint admits only that Vons certified to Asurint that it would comply with the FCRA

and all applicable laws. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 25 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶26:

Vons and Asurint, as an agent and/or fiduciary representative of Vons, rescinded Plaintiff's position and terminated him because of registry information Asurint obtained from the Megan's Law website and disclosed in the background report for Vons. On information and belief, Vons hires and authorizes Asurint to obtain and use information in the background report provided by Asurint to make employment decisions for and on behalf of Vons. On information and belief Asurint acted as an agent and/or fiduciary representative for Vons and acted within the course and scope of such agency or fiduciary relationship in using the information from the Megan's Law Website to deny Plaintiff employment.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 26 of the Complaint, and specifically denies any violation of the FCRA, or any other law. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶27:

If Defendants would give Plaintiff a fair chance at employment, Plaintiff would like to apply again to work for Vons.

ANSWER:

Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 27 of the Complaint. Answering further, Asurint states that it does not make or participate in hiring decisions on behalf of Vons.

CLASS ACTION ALLEGATIONS

COMPLAINT ¶28:

Plaintiff brings this action on behalf of himself and all others similarly situated (the "Classes"), pursuant to Federal Rule of Civil Procedure 23(b)(2) and 23(b)(3), based on the following class definitions:

> **Megan's Law Class**: All persons in California who applied for employment with Vons and were denied employment as a result of Vons' use of information disclosed in the Megan's Law Website, during the relevant statute of limitations period.
>
> **Fair Chance Class**: All persons in California who applied for employment with Vons and were denied employment as a result of their conviction history.
>
> **FCRA Class**: All persons in California who applied for employment with Vons and on whom Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons and/or Asurint for employment decisions, during the relevant statute of limitations period.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint admits only that Plaintiff purports to bring this Complaint as a purported class action on behalf of himself and individuals as identified in Paragraph 28 of the Complaint. Asurint denies all remaining allegations in Paragraph 28 of the Complaint as to Asurint, and specifically denies that it violated the FCRA or any other law, and denies that class treatment is appropriate in this action. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶29:

Excluded from the Classes are: (1) Defendants, any entity or division in which Defendants have a controlling interest, and their legal representatives, officers, directors, assigns, and successors; and (2) the Judge to whom this case is assigned and the Judge's staff. Plaintiff reserves the right to amend or expand the Classes' definitions to seek

recovery on behalf of additional persons as warranted as facts are learned in further investigation and discovery.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 29 of the Complaint, and specifically denies that it violated the FCRA, or any other law, and denies that class treatment is appropriate in this action. Asurint denies all remaining allegations in Paragraph 29 of the Complaint.

COMPLAINT ¶30:

Plaintiff and members of the Megan's Law Class were harmed by the acts of Vons in at least the following ways: Vons used registry information in the Megan's Law Website for purposes relating to employment, Vons denied Plaintiff and other members of the Megan's Law Class employment based on information from the Megan's Law Website, and this violation caused Plaintiff and Megan's Law Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe embarrassment, emotional distress, anxiety, deep frustration and loss of sleep.

ANSWER:

Paragraph 30 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶31:

Common questions of fact and law exist as to all members of the Megan's Law Class, which predominate over any questions affecting only Plaintiff or individual members of the Megan's Law Class. These common legal and factual questions, which do not vary between the Megan's Law class members, and which may be determined

without reference to the individual circumstances of any Megan's Law Class members, include, but are not limited to, the following:

A. Whether, within four years prior to the filing of this Complaint, Vons used information in the Megan's Law Website for purposes relating to employment;

B. Whether, within four years prior to the filing of this Complaint, Vons denied Plaintiff and other members of the Megan's Law Class employment based on information from the Megan's Law Website;

C. Whether Plaintiff and the Megan's Law Class members were damaged thereby, and the extent of damages for such violation;

D. Whether such conduct is unlawful; and

E. Whether Vons should be enjoined from engaging in such conduct in the future.

ANSWER:

Paragraph 31 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶32:

As a person who was denied employment as a result of information in the Megan's Law Website, Plaintiff is asserting claims that are typical of the Megan's Law Class.

ANSWER:

Paragraph 32 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶33:

Plaintiff and members of the Fair Chance Class were harmed by the acts of Vons in at least the following ways: Vons intended to deny Plaintiff and members of the Fair Chance Class a position of employment solely or in part because of their conviction history and did not make an individualized assessment of whether their conviction history had a direct and adverse relationship with the specific duties of the job that justified denying them the position. This violation caused Plaintiff and Fair Chance Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

ANSWER:

Paragraph 33 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶34:

Common questions of fact and law exist as to all members of the Fair Chance Class which predominate over any questions affecting only individual members of the Fair Chance Class. These common legal and factual questions, which do not vary between the Fair Chance Class members, and which may be determined without reference to the individual circumstances of any Fair Chance Class members, include, but are not limited to, the following:

A. Whether within three years prior to the filing of this Complaint Vons conducted individualized assessments of job applicants with a conviction history;

B. Whether Vons's conduct was unlawful; and

C. Whether Vons should be ordered to comply with the Fair Chance Act in the future.

ANSWER:

Paragraph 34 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶35:

As a job applicant with a conviction history who was denied employment by Vons without an individualized assessment, Plaintiff is asserting claims that are typical of the Fair Chance Class.

ANSWER:

Paragraph 35 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶36:

Plaintiff and members of the FCRA Class were harmed by the acts of Asurint in at least the following ways: Asurint conducted background searches and furnished a consumer report containing registry information from the Megan's Law Website that Asurint knew would be unlawfully used by Vons and/or Asurint for employment decisions. This violation caused Plaintiff and FCRA Class members to lose an opportunity to earn income, have a lawful paying job, contribute to the workforce, be productive members of their community, and severe emotional distress, anxiety, deep frustration and loss of sleep.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 36 of the Complaint, and specifically denies that it violated the FCRA, or any other law, and denies that class treatment is appropriate in this action.

COMPLAINT ¶37:

Common questions of fact and law exist as to all members of the FCRA Class which predominate over any questions affecting only individual members of the FCRA Class. These common legal and factual questions, which do not vary between the FCRA Class members, and which may be determined without reference to the individual circumstances of any FCRA Class members, include, but are not limited to, the following:

A. Whether Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Web site knowing that the information would be unlawfully used by Vons for employment decisions;

B. Whether Asurint's conduct was unlawful; and

C. Whether Asurint should be enjoined from engaging in such conduct in the future.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 37 of the Complaint, and specifically denies that it violated the FCRA, or any other law, and denies that class treatment is appropriate in this action.

COMPLAINT ¶38:

As a person that who applied for employment with Vons and on whom Asurint furnished a background consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons for employment decisions, Plaintiff is asserting claims that are typical of the FCRA Class.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 38 of the Complaint, and specifically denies that it violated the FCRA, or any other law, and denies that class treatment is appropriate in this action.

COMPLAINT ¶39:

The members of the Classes are so numerous that joinder of all members would be unfeasible and impractical. The membership of the Classes is currently unknown to Plaintiff at this time; however, given that, on information and belief Vons has thousands of employees and receives thousands of employment applications in California each year, and Asurint furnishes background reports for thousands of prospective employees in California per year, the members of each of the Classes are so numerous that joinder of all members is impracticable. The disposition of their claims in a class action is a superior method to individual actions and will provide substantial benefits to the parties and the Court.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 39 of the Complaint, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶40:

Plaintiff will fairly and adequately protect the interest of the members of the Classes because Plaintiff has no interests which are adverse to the interest of absent class members and because Plaintiff has retained counsel who possess significant class action litigation experience regarding alleged violations of consumer statutes.

ANSWER:

Asurint denies the allegations in Paragraph 40 of the Complaint, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶41:

A class action is superior to other available methods of fair and efficient adjudication of this controversy because individual litigation of each of the claims of the members of the Classes is impracticable. Even if every Class member could afford individual litigation, the court system could not. It would be unduly burdensome to the courts in which individual litigation of numerous issues would proceed. Individualized litigation would also present the potential for varying, inconsistent, or contradictory judgments and would magnify the delay and expense to all parties and to the court system resulting from multiple trials of the same complex factual issues. By contrast, the conduct of this action as a class action presents fewer management difficulties, conserves the resources of the parties and of the court system, and protects the rights of each member of the Classes.

ANSWER:

Asurint denies the allegations in Paragraph 41 of the Complaint, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶42:

The prosecution of separate actions by individual members of the Classes would create a risk of adjudications with respect to them that would, as a practical matter, be dispositive of the interests of the other Class members not parties to such adjudications or that would substantially impair or impede the ability of such non-party Class members to protect their interests.

ANSWER:

Asurint denies the allegations in Paragraph 42 of the Complaint, and specifically denies that class treatment is appropriate in this action.

COMPLAINT ¶43:

Vons and Asurint have acted or refused to act in respects generally applicable to the Classes, thereby making appropriate final and injunctive relief with regard to the members of the Classes as a whole.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 43 of the Complaint, and specifically denies that class treatment is appropriate in this action. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

FIRST CAUSE OF ACTION

CALIFORNIA MEGAN'S LAW

Cal. Pen. Code § 290.46 *et seq*.

(Against Vons)

COMPLAINT ¶44:

Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

ANSWER:

Asurint restates its answers to Paragraphs 1 through 43 as its answer to Paragraph 44 of the Complaint.

COMPLAINT ¶45:

California Megan's Law, Penal Code § 290.46 ("Megan's Law"), requires that the Department of Justice maintain a public website identifying persons who are registered sex offenders on the website.

ANSWER:

Paragraph 45 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in

Paragraph 45 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 45 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶46:

To ensure that registered offenders are not discriminated against based on information in the website, the Megan's Law also prohibits the use of any information disclosed in the Megan's Law Website from being used for employment purposes. Cal. Penal Code § 290.46(j)(2)(E).

ANSWER:

Paragraph 46 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 46 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 46 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶47:

Vons used the information about Plaintiff contained in the Megan's Law Website for employment purposes and denied Plaintiff employment with Vons. Despite Plaintiff's positive performance as a deli associate at Vons for two months, Vons used information contained in the Megan's Law Website to conclude that Plaintiff was not fit to work at Vons.

ANSWER:

Paragraph 47 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint denies the allegations in Paragraph 47 of the Complaint, and specifically denies that class treatment is appropriate in this action. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

COMPLAINT ¶48:

As a result of Vons' violations, Plaintiff and members of the Class are entitled to recover actual damages, including lost wages, damages for emotional distress, loss of sleep, anxiety, treble damages, statutory damages, a civil penalty of $25,000.00, exemplary damages, and attorney fees and costs. Plaintiff and members of the Megan's Law Class are also entitled to injunctive/preventative relief ordering that, moving forward, Vons cease from using information on the Megan's Law Website for employment purposes.

ANSWER:

Paragraph 48 of the Complaint does not include any allegations against Asurint and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint denies the allegations in Paragraph 48 of the Complaint, and specifically denies that class treatment is appropriate in this action. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis.

SECOND CAUSE OF ACTION

FAIR CHANCE ACT

Cal. Gov. Code § 12952

(Against Vons)

COMPLAINT ¶49:

Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

ANSWER:

Asurint restates its answers to Paragraphs 1 through 48 as its answer to Paragraph 49 of the Complaint.

COMPLAINT ¶50:

California's Fair Chance Act "aims to reduce undue barriers to employment for individuals with criminal histories. This law generally prohibits employers with five or more employees from asking a job candidate about conviction history before making a job offer, among other requirements. This type of law is also known as a `Ban the Box' law." California Civil Rights Department, *Fair Chance Act: Guidance for California Employers and Job Applicants (available at:* https://calcivilrights.ca.gov/fair-chance-act/). "California enacted the Fair Chance Act to reduce barriers to employment for individuals with conviction histories because gainful employment is essential to these individuals supporting themselves and their families and to improving their community ties and mental health — all of which reduce recidivism." California Civil Rights Department, *Fair Chance Act: Criminal History and Employment (available at:* https://calcivilrights.ca.gov/wp-content/uploads/sites/32/2022/11/Fair-Chance-Act-FAQ_ENG.pdf).

ANSWER:

Paragraph 50 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 50 of the Complaint that are inconsistent with the cited references. Asurint denies any remaining allegations in Paragraph 50 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶51:

The Fair Chance Act, codified at Government Code § 12952, provides that "[a]n employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." Gov. Code § 12952(c). In making the assessment, the employer must "consider all the following: (i)

The nature and gravity of the offense or conduct. (ii) The time that has passed since the offense or conduct and completion of the sentence. (iii) The nature of the job held or sought." *Id.*

ANSWER:

Paragraph 51 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 51 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 45 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶52:

"If the employer decides to take back the job offer based on your criminal history, they must tell you so in writing, provide a copy of any conviction history report they relied on, and give you at least five business days to respond." Id. The written notice "must" provide "[a]n explanation informing the applicant that, if the applicant chooses to respond, the response may include submission of either or both of the following types of evidence: evidence challenging the accuracy of the conviction history report that is the basis for the preliminary decision to rescind the offer, or evidence of rehabilitation or mitigating circumstances." 2 C.C.R. § 11017.1(c).

ANSWER:

Paragraph 52 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 52 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 52 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶53:

"To the extent that any evidence of rehabilitation or mitigating circumstances... is voluntarily provided by the applicant... that evidence must be considered as part of the

initial individualized assessment." 2 C.C.R. § 11017.1(c)(1)(C); Cal. Gov. Code § 12952(c)(4). In addition, "[t]he employer shall consider any information submitted by the applicant before making a final decision regarding whether or not to rescind the conditional offer of employment." 2 C.C.R. § 11017.1(c)(3).

ANSWER:

Paragraph 53 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 53 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 53 of the Complaint to the extent they pertain to Asurint.

COMPLAINT ¶54:

Vons is an employer.

ANSWER:

Paragraph 54 of the Complaint does not include allegations directed towards Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint admits that Vons employs individuals. Asurint lacks knowledge or information sufficient to form a belief as to the truth of any remaining allegations in Paragraph 54 of the Complaint.

COMPLAINT ¶55:

Plaintiff is an applicant who applied for a position of employment with Vons.

ANSWER:

Asurint admits only that, at the request of Vons, it prepared a consumer report regarding Plaintiff. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 55 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶56:

Vons reviewed Plaintiff's criminal history in the background report and based on the conviction history intended to deny Plaintiff a position of employment solely or in part because of his conviction history, even though Vons was already employing Plaintiff and Plaintiff was performing very well as a deli associate.

ANSWER:

Asurint denies the allegations in Paragraph 56 of the Complaint.

COMPLAINT ¶57:

Vons did not make an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of the deli associate position that Plaintiff applied for that would justify denying him the position or terminating his employment.

ANSWER:

Paragraph 57 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 57 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶58:

The duties of the deli associate position included preparing, measuring and serving food from behind the deli counter, cleaning the deli premises, and providing a positive customer environment. Vons did not consider the fact that Plaintiff had been working at the store for several weeks, and his supervisors, Holly and Laura, found Plaintiff to be a competent, fit, and productive employee who added value to the store. Vons did not consider the nature and gravity of Plaintiff's offense or conduct, the over six years that had passed since the offense, or the nature of the job held or sought. The fact that

Plaintiff was employed and performed very well as a deli clerk was not taken into account.

ANSWER:

Paragraph 58 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 58 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶59:

In addition, Vons did not consider the evidence of rehabilitation and mitigating circumstances, including good character letters, that Plaintiff had submitted. It is abundantly clear that Vons does not provide applicants with a conviction history a "fair chance" at employment.

ANSWER:

Paragraph 59 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 59 of the Complaint and denies those allegations on that basis.

COMPLAINT ¶60:

As a result of Vons's violations, Plaintiff and members of the Fair Chance Class are entitled to recover actual damages, including lost wages, damages for emotional distress, embarrassment, loss of sleep, anxiety, treble damages, statutory damages, punitive damages, and attorney fees and costs. Plaintiff and members of the Fair Chance Class are also entitled to injunctive/preventative relief ordering that, moving forward, Vons comply with the Fair Chance Act and provide each and every applicant with a

conviction history an individualized assessment to fairly determine whether she or he is fit for the position.

ANSWER:

Paragraph 60 of the Complaint does not include allegations directed toward Asurint, and, therefore, no answer from Asurint is required. To the extent an answer is required, Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 60 of the Complaint and denies those allegations on that basis.

THIRD CAUSE OF ACTION

FAIR CREDIT REPORTING ACT

15 U.S.C. § 1681 b(b)(1)

(Against Asurint)

COMPLAINT ¶61:

Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

ANSWER:

Asurint restates its answers to Paragraphs 1 through 61 of the Complaint as its answer to Paragraph 61 of the Complaint.

COMPLAINT ¶62:

Asurint is a "consumer reporting agency" as defined by the FCRA.

ANSWER:

Asurint admits that it provides certain services as a "consumer reporting agency," as that phrase is defined by the FCRA, and as limited to those services only. Asurint denies any remaining allegations in Paragraph 62 of the Complaint.

COMPLAINT ¶63:

Plaintiff is a "consumer" as defined by the FCRA, on who a "consume[r][sic] report" was generated and furnished, as defined by the FCRA.

ANSWER:

Asurint admits that Plaintiff is a "consumer" as that term is defined by the FCRA and admits that it prepared a "consumer report" regarding Plaintiff. Asurint denies all remaining allegations in Paragraph 63 of the Complaint.

COMPLAINT ¶64:

The FCRA, Section 1681b(b)(1), provides that "[a] consumer reporting agency may furnish a consumer report for employment purposes only if--... information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation [.]"

ANSWER:

Paragraph 64 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 64 of the Complaint that are inconsistent with the language or requirements of the FCRA. Asurint denies all remaining allegations in Paragraph 64 of the Complaint, and specifically denies that it violated 15 U.S.C. § 1681b(b)(1) or any other law.

COMPLAINT ¶65:

Asurint furnished a consumer report to Vons with knowledge that the information from the consumer report will be used in violation of the law, including California's Megan's Law. On January 24, 2023 Asurint sent Plaintiff an email stating that it is "reporting criminal or other public record information" to Vons, and Vons will use that information "to determine your eligibility for employment, promotion, reassignment, and/or retention," even though the only criminal information in the background report is from the Megan's Law registry. Asurint knew that Vons was using the Megan's Law registry information for unlawful means, and in fact enabled the misconduct. On information and belief, Asurint, as an agent or fiduciary representative for Vons, used the consumer report in violation of California's Megan's Law by making employment decisions on behalf of Vons based on information from the Megan's Law Website

contained in the consumer report. Thus, Asurint is in violation of the FCRA, 15 U.S.C. § 1681b(b)(1)(A).

ANSWER:

Asurint admits only that it prepared a consumer report on Plaintiff at the request of Vons. Asurint denies the remaining allegations in Paragraph 65 of the Complaint, and specifically denies that it violated FCRA, or any other law.

COMPLAINT ¶66:

As a result of Asurint's negligent violation of the FCRA, Plaintiff and FCRA Class members are entitled to actual damages, and reasonable attorneys' fees and costs. 15 U.S.C. § 1681n.

ANSWER:

Asurint denies the allegations in Paragraph 66 of the Complaint, and specifically denies that it violated FCRA, or any other law, and denies that class treatment is appropriate in this action.

COMPLAINT ¶67:

Asurint also acted with knowledge, willfulness, and reckless disregard of the law, thereby entitling Plaintiff and FCRA Class members to statutory damages of $1,000.00 and punitive damages in an amount to be determined at trial. 15 U.S.C. § 1681n.

ANSWER:

Asurint denies the allegations in Paragraph 67 of the Complaint, and specifically denies that it violated FCRA, or any other law, and denies that class treatment is appropriate in this action.

FOURTH CAUSE OF ACTION

UNFAIR COMPETITION LAW

California Business & Professions Code § 17200

(Against All Defendants)

COMPLAINT ¶68:

Plaintiff repeats, re-alleges, and incorporates by reference all other paragraphs, as if fully set forth herein.

ANSWER:

Asurint restates its answers to Paragraph 68 through 75 as its answer to Paragraph 68 of the Complaint.

COMPLAINT ¶69:

The UCL defines unfair competition to include any unlawful, unfair, or fraudulent business act or practice. The UCL provides that a court may order injunctive relief as a remedy for any violations of the UCL.

ANSWER:

Paragraph 69 of the Complaint consists entirely of legal conclusions which require no response. To the extent an answer is required, Asurint denies any allegations in Paragraph 69 of the Complaint that are inconsistent with the cited statute. Asurint denies any remaining allegations in Paragraph 69 of the Complaint, and specifically denies that it violated the UCL, or any other law.

COMPLAINT ¶70:

Beginning on an exact date unknown to Plaintiff, but at all times relevant herein, Vons and Asurint have committed acts of unfair and unlawful competition proscribed by the UCL, including the practices alleged herein. The acts of unfair competition include the following:

a. Vons used information contained in the Megan's Law Website for employment purposes.

b. Vons failed to conduct an individualized assessment of Plaintiff in determining whether Plaintiff was fit for employment.

c. Asurint furnished consumer reports to Vons with knowledge that the information from the consumer report will be used in violation of the law, including California's Megan's Law.

ANSWER:

With respect to those allegations directed toward Asurint, Asurint denies the allegations in Paragraph 70 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 70 of the Complaint.

COMPLAINT ¶71:

Defendants' unlawful conduct has caused and continues to cause substantial injury to Plaintiff and the members of the Classes. As a result of Defendants' unfair and unlawful conduct, Plaintiff lost money and/or property.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 71 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 71 of the Complaint.

COMPLAINT ¶72:

The business acts and practices of Defendants, as hereinabove alleged, constitute unfair business practices in that said acts and practices offend public policy and are substantially injurious to consumers and prospective employees. These acts and practices have no utility that outweighs their substantial harm to consumers and prospective employees.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 72 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 72 of the Complaint.

COMPLAINT ¶73:

The unlawful and unfair business acts and practices of Defendants described herein present a continuing threat to Plaintiff and members of the general public in that Vons and Asurint are currently engaging in such acts and practices, and will persist and continue to do so unless and until an injunction is issued by this Court.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 73 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 73 of the Complaint.

COMPLAINT ¶74:

Pursuant to Business and Professions Code § 17203, Plaintiff seeks a injunction ordering that, moving forward:

a. Vons cease from using information on the Megan's Law Website for employment purposes.

b. Moving forward, Vons comply with the Fair Chance Act and provide each and every applicant with a conviction history an individualized assessment to fairly determine whether she or he is fit for the position.

c. Asurint cease from furnishing consumer reports that include information from the Megan's Law Website knowing that such information will be used in violation of the law.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 74 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 74 of the Complaint.

COMPLAINT ¶75:

Pursuant to Code of Civil Procedure § 1021.5, Plaintiff seeks recovery of his attorney's fees, costs and expenses incurred in the filing and prosecution of this action.

ANSWER:

With respect to those allegations directed towards Asurint, Asurint denies the allegations in Paragraph 75 of the Complaint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in Paragraph 75 of the Complaint.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays that judgment be entered against Vons, and Plaintiff be awarded the following legal and equitable relief:

1. Certifying the Classes and pursuant to Federal Rule of Civil Procedure 23, certifying Plaintiffs as the representatives of the Classes, and designating their counsel as counsel for the Classes

2. Actual and compensatory damages for injuries suffered by Plaintiffs and the Classes;

3. Statutory damages and treble damages;

4. Punitive/exemplary damages;

5. Civil penalties;

6. Injunctive/preventative relief ordering Vons and Asurint ordering that, moving forward, Vons cease from using information on the Megan's Law Website for employment purposes;

7. Injunctive relief ordering that, moving forward, Vons comply with the Fair Chance Act and provide each and every applicant with a conviction history an individualized assessment to fairly determine whether she or he is fit for the position;

8. Injunctive relief ordering that moving forward Asurint cease from furnishing consumer reports that include information from the Megan's Law Website knowing that such information will be used in violation of the law;

9. Reasonable attorney's fees and costs to bring and maintain the instant action;

10. For such other and further relief as the Court may deem just and proper.

ANSWER:

With respect to the relief requested from Asurint and those allegations directed toward Asurint, Asurint denies that Plaintiff is entitled to any of the relief requested in the Complaint as to Asurint, and further denies that Plaintiff is entitled to any relief whatsoever from Asurint. Asurint lacks knowledge or information sufficient to form a belief as to the truth of the allegations against Vons and denies those allegations on that basis. Asurint denies all remaining allegations in the Prayer for Relief.

TRIAL BY JURY

Pursuant to the Seventh Amendment to the Constitution of the United States of America, Plaintiff is entitled to, and demands, a trial by jury.

ANSWER:

Asurint admits that Plaintiff purports to demand a jury trial. Asurint denies that Plaintiff is entitled to a jury trial and denies any remaining allegations in the demand for Trial by Jury.

AFFIRMATIVE AND OTHER DEFENSES

Without assuming the burden of proof where it otherwise rests with Plaintiff, Asurint asserts the following affirmative and other defenses to the Complaint, and reserves its right to raise additional defenses as may be discovered during the course of these proceedings:

FIRST DEFENSE

Any damages sustained by Plaintiff and/or putative class members were not proximately caused by Asurint.

SECOND DEFENSE

Asurint consistently followed reasonable procedures to assure maximum possible accuracy in the information concerning Plaintiff and all other individuals on which it has prepared consumer reports.

THIRD DEFENSE

Plaintiff's claims and/or the putative class members' claims are barred in whole or in part to the extent they occurred and/or accrued outside of the applicable statute of limitations.

FOURTH DEFENSE

To the extent Plaintiff's individual or purported classes include individuals who suffered no concrete harm, such individuals lack standing to bring suit against Asurint.

FIFTH DEFENSE

Asurint is not subject to general or specific personal jurisdiction in this Court as to the claims belonging to some or all members of the putative class defined in the Complaint.

SIXTH DEFENSE

This Court is not the proper venue as to the claims belonging to some or all members of the putative class defined in the Complaint.

SEVENTH DEFENSE

Plaintiff's claims on behalf of putative class members fail because Plaintiff cannot meet his burden to demonstrate each requirement of Federal Rule of Civil Procedure 23 including, but not limited to, ascertainability, adequacy, typicality, commonality, predominance, and superiority, and because certifying a class in the circumstances of this case would violate Asurint's right to due process under the law.

EIGHTH DEFENSE

Asurint complied with 15 U.S.C § 1681b(b)(1) by obtaining certification from Vons that any information included in any consumer report would not be used in violation of any applicable Federal or State equal employment opportunity law or regulation.

NINTH DEFENSE

Plaintiff's and putative class members' claims are barred, in whole or in part, by the doctrine of laches.

TENTH DEFENSE

Plaintiff's and putative class members' claims are barred, in whole or in part, by the doctrine of estoppel.

ELEVENTH DEFENSE

Plaintiff's and putative class members' claims are barred, in whole or in part, by the doctrine of unclean hands.

TWELFTH DEFENSE

Plaintiff's and putative class members' claims for damages must be reduced because of Plaintiff's and/or putative class members' failure to reasonably mitigate any alleged damages.

THIRTEENTH DEFENSE

Plaintiff's and putative class members' claims fail because Asurint's publication of any information regarding Plaintiff and/or putative class members was constitutionally protected speech.

FOURTEENTH DEFENSE

Plaintiff's and putative class members' claims for punitive and statutory damages fail because Asurint did not willfully fail to comply with any section of the FCRA or with the provisions of the California Business & Professions Code, instead acting in good faith and with reasonable basis for believing it did not violate any law.

FIFTEENTH DEFENSE

Plaintiff's and putative class members' claims for punitive damages violate the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the U.S. Constitution and corresponding Articles of the California Constitution because any punitive are disproportionate to any actual damages claimed or available, any award of punitive and/or statutory damages would constitute an unlawful taking of Asurint's property, and/or any award of punitive damages is inconsistent with due process.

SIXTEENTH DEFENSE

Plaintiff's claims on behalf of absent putative class members fail to the extent that any putative class member entered into any settlement agreement with Asurint or otherwise released Asurint from liability as alleged in the Complaint.

RESERVATION OF RIGHTS

Asurint's investigation is ongoing and discovery in this action has not commenced. Asurint reserves its right to raise additional defenses as may be discovered or become apparent during the course of these proceedings.

DATED: May 30, 2025

SEYFARTH SHAW LLP

By: */s/ Jasmine J. Stanzick*
Jasmine J. Stanzick
Attorneys for Defendant
ONE SOURCE d/b/a ASURINT

CERTIFICATE OF SERVICE

I certify that on May 30, 2025, I filed the foregoing ONE SOURCE TECHNOLOGY D/B/A ASURINT'S ANSWER TO PLAINTIFF'S CLASS ACTION COMPLAINT with the Clerk of the Court using the CM/ECF system, which will send email notification of such filing to all attorneys of record.

/s/ Jasmine J. Stanzick
Jasmine J. Stanzick
Attorneys for Defendant
ONE SOURCE d/b/a ASURINT